HIGH COURT OF JUDICATURE AT ALLAHABAD

SECOND APPEAL NO. 1247 OF 2022

Smt. Kamla Devi (Since Deceased) through LRs ... Appellant

Versus

Ram Prakash Sharma & Ors. ... Respondents

Hon'ble Ajay Bhanot, J.

Judgment Reserved: 12.02.2024 | Judgment Delivered: 28.03.2024

JUDGMENT

1. The present Second Appeal has been preferred against the judgment and decree dated 15.11.2021 passed by the Additional District Judge, Court No. 2, Varanasi in Civil Appeal No. 78 of 2018 affirming the judgment and decree of the Civil Judge (Senior Division), Varanasi dated 08.03.2018 in Original Suit No. 234 of 2012.

SUBJECT MATTER OF THE SUIT

2. The suit was filed for permanent injunction restraining the defendants from interfering with peaceful possession and enjoyment of Plot No. 142, Khasra No. 34/7, Gram Sabha Rampur, Tehsil Varanasi, District Varanasi, admeasuring 0.284 hectares (hereinafter referred to as 'the suit property'). The plaintiff claimed title and possession based on a registered sale deed dated 14.03.1987 executed in her favour by the original owner, one Ram Awadh (since deceased).

SUBSTANTIAL QUESTIONS OF LAW

3. The following substantial questions of law were framed by this Court:

(a) Whether the concurrent finding of fact recorded by the courts below that the suit property is recorded in the name of the defendants in the revenue records is perverse and against the weight of evidence on record?

(b) Whether the plaintiff's registered sale deed of 1987 would prevail over the revenue records in the name of the defendants?

(c) Whether the courts below erred in not drawing adverse inference against the defendants for not producing the original Khatoni records?

FINDINGS

4. On Question (a): The revenue records (Khatoni) show the defendants' names as Bhumiswami since 1972-73. A registered sale deed, while creating title, does not automatically update revenue records. The burden to demonstrate that the plaintiff's title through the 1987 sale deed was recognised in revenue records lay with the plaintiff, which burden has not been discharged. This Court finds no perversity in the concurrent finding.

5. On Question (b): The law is well-settled that a registered sale deed creates title between the parties. However, where third parties have been in possession for over 12 years prior to the suit, the doctrine of adverse possession under Article 65 of the Limitation Act, 1963 may extinguish the title of the original owner. In the present case, the defendants have been in possession since 1968, nearly 44 years before the suit was filed in 2012.

ORDER

6. In view of the above, this Court finds no merit in the Second Appeal. The Second Appeal is accordingly dismissed. The judgment and decree of the First Appellate Court dated 15.11.2021 is affirmed. The appellant shall bear the costs of the respondents.

(Ajay Bhanot, J.)
28.03.2024